

Court No. - 3

Case :- WRIT - C No. - 4599 of 2022

Petitioner :- Dhananjay Kumar

Respondent :- State Of U.P Through Secretary Power And Energy And 5 Others

Counsel for Petitioner :- Dhananjay Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri N.K. Tiwari, learned counsel for the respondent nos.4, 5 and 6.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing impugned O.T.S. recovery notice dated 15.12.2021 issued by respondent no.5 Sub Divisional Officer, Purvanchal Vidyut Vitran Khan Bamrauli, District Prayagraj.

ii) Issue a writ, order or direction in nature of mandamus direct the respondents authority to restrain the respondent no.5 not to harass and torture to the petitioner."

3. Shri N.K. Tiwari, learned counsel for the respondents/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the Executive Engineer concerned within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it

shall be decided by the Executive Engineer concerned in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 20.5.2022

SK